



File No.: EXP202211940

Warning Procedure: PA/0054/2023

RESOLUTION OF WARNING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) on October 14, 2022, filed a complaint with the Spanish Agency for Data Protection for identity theft and denial of the right to access their personal data, directed against 5 online gaming operators, among which is the defendant in this procedure, ELECTRAWORKS CEUTA, S.A. with NIF A67870402 (hereinafter, the defendant/ELECTRAWORKS). The complainant states that their personal data has been used to fraudulently register user accounts on various online gaming websites, one of which - Bwin.es - is managed by the defendant entity, to whose representatives the complainant has addressed to report the facts, request the blocking and deletion of the accounts, as well as to request access to information related to the registration of the aforementioned accounts, having been denied such information.

The reasons on which this complaint is based are, briefly, the following:

- On July 11, 2022, the complainant received notification of the initiation of a file from the Tax Agency corresponding to the fiscal year 2018 for not declaring in the tax return of that year a capital gain of €643.01, obtained by betting on the betting houses of internet operators identified as PokerStats, Tilliam Hill, Bet365, and Bwin. No request from the aforementioned Tax Agency is attached.
- Having not registered such accounts nor carried out the operations attributed to them, the complainant filed a report for identity theft with the National Police on July 12, 2022, and registered in the "Phishing Alert" application of the General Directorate of Gaming Regulation of the Ministry of Consumer Affairs of the Government of Spain (hereinafter, DGOJ).
- In the aforementioned DGOJ application, it is noted that the complainant has accounts on various online gaming websites, which are managed by 5 different operators. Specifically, the management of the accounts opened on Partypoker, Pattycasin, and Entain, apparently linked to Bwin, corresponds to the entity Electraworks Ceuta S.A.U.

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In light of this information, the legal representative of the claimant sends various burofaxes and emails to these 5 operators, which are attached to the claim. All of them formulate a request for the blocking and deletion of all accounts opened in the name of the claimant, as well as a request for access and a copy of all data regarding the historical operations that may have been carried out using these accounts, as well as the IP addresses from which these accounts were generated.

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Focusing on the request made to the defendant that initiates the present procedure against ELECTRAWORKS, the claimant states and proves:

1. This request for access to information and blocking/deletion of the account was made by the claimant's lawyer via burofax dated July 19, 2022, which was not delivered due to unknown reasons. A copy was sent by email on July 20 of the same year to the address of the defendant, which is recorded as All_CS_legal_and_RG@bwinparty.com.
2. ELECTRAWORKS acknowledges receipt of the request via email dated July 27, 2022, indicating in this regard the claimant: "For its part, BWIN contacted my representatives by email, requesting a copy of my ID and the power of legal representation from my lawyers, without any subsequent response being received from them."

Along with the claim, a copy of the complaint filed with the National Police, a report from the Phishing

Alert application of the DGOJ, burofaxes and emails sent to the responsible operators, their responses if applicable, and the emails sent are provided. Regarding communications with ELECTRAWORKS, a burofax rejected due to unknown address on July 26, 2022, is attached, in which the access request made by the claimant is annexed. A copy of the email sending the access request from the claimant's lawyer to ELECTRAWORKS is not provided, but the email from the defendant dated July 27, 2022, is recorded, in which receipt of the request made is acknowledged, and a copy of the power of attorney from the lawyer and the claimant's ID is requested, as well as two more emails from the lawyer providing the power of attorney on July 28, 2022, and a color copy of the ID dated September 23, 2022.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), on December 31, 2022, this claim was forwarded to ELECTRAWORKS for them to proceed with its analysis and inform this Agency within one month about the compliance with the rights requested by the claimant and the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was done through electronic notification to the unique electronic address of the defendant, being received by them on January 3, 2024.

FOURTH: On January 14, 2023, in accordance with Article 65 of the

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LOPDGDD, the claim submitted by the claimant against ELECTRAWORKS was admitted for processing.

FIFTH: In response to the transfer of the claim made on January 30, 2023, ELECTRAWORKS submitted a written statement of allegations, in which the following information is provided, among others:

- It is clarified that until September 23, 2022, all documentation was not received, since when the claimant's lawyer provided her ID, a color copy was requested, which was received on the mentioned date.

- It is confirmed that a response was given to the claimant. Annex I includes the response sent on October 21, 2022, to the legal representative of the claimant, responding to her request - through an internal management system called "Zendesk" - in which the following is indicated:

1. Regarding the account reported as fraudulent, the claimant was informed in that response of the following: "(...) In response to your Subject Access Request ("DSAR") to which you are entitled under the General Data Protection Regulation ("GDPR"), we would like to confirm that we have internally reviewed our systems and can see that there was an account registered in the name of A.A.A.. Investigation – Fraudulent account. After the investigation, it was confirmed that an account was created in the name of your client through the Bwin.es website by an unauthorized person. We have taken the following measures to:

- Proceed with the closure of the account

- Add your client's name to our list of fraudulent accounts to prevent third parties from opening more accounts in the future (...).

2. Regarding the request for access to personal data made by the claimant, the following was stated:

"(...) The claimant's lawyer was informed that with the exception of the registration data (such as name and date of birth), Bwin understands that the rest of the data does not belong to A.A.A., and therefore, we do not consider that they should be subject to the right of access by the claimant, but rather through a police request. This does not mean, in any case, that Bwin refuses to send the documentation, as we have emphasized in our previous writing (and even recommended to the claimant's lawyer) that a request be sent to the State Security Forces so that we can respond to the request, send all the documentation, and prevent a case of identity theft in the future. In fact, we are

waiting for the police to contact us to send all the documentation and cooperate in this procedure.” Furthermore, ELECTRAWORKS states that it is not possible to delete the claimant's data: “Due to being an account related to fraud, we are obliged to retain the account data for a retention period subject to Law 10/2010, of April 28, on the prevention of money laundering and the financing of terrorism, which establishes a minimum period of 10 years.

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Likewise, the data has been added to an internal file that will prevent the claimant's data from being used illegitimately in the future. If we proceeded to delete the data, we would not be able to fulfill the purposes mentioned above. (...)

SIXTH: In view of the background, the General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD.

On July 6, 2023, a request for information was made to ELECTRAWORKS, in order to clarify certain facts necessary to determine whether there are indications of administrative infringement in this case, requesting that they provide:

1. Indication of the date on which the claimant registered as a user on their gaming websites PARTYPOKER, PARTYCASINO, and BWIN.
2. What regulatory provisions they had to comply with, as a gaming operator, at the time of the claimant's registration as a user, regarding the identification of participants in their games on PARTYPOKER, PARTYCASINO, and BWIN.
3. Description of the identification process of the claimant and their payment methods during their registration as a participating user in their games on PARTYPOKER, PARTYCASINO, and BWIN.
4. Provide a copy of the documents and data that the user submitted during the registration of the claimant as a user on their gaming websites PARTYPOKER, PARTYCASINO, and BWIN.
5. Description of the process followed by the user to indicate the payment method in which the winnings obtained after playing in their games on PARTYPOKER, PARTYCASINO, and BWIN should be deposited.
6. Provide a copy of the documents and data that the user submitted during the registration of the payment method in which the winnings obtained after playing in their games on PARTYPOKER, PARTYCASINO, and BWIN should be deposited.
7. Report on the causes that may have led to the claimant's data being used without their consent to register as a participating user in their games on PARTYPOKER, PARTYCASINO, and BWIN.
8. What measures have been taken since the claimant registered on their website to ensure the identity of the user registering.

This request was electronically notified on July 17, 2023, understanding it to be rejected due to the lack of acceptance within the 10-day period from its availability, in accordance with the provisions of Article 43.2 of Law 39/2015 of October 1, on the Common Administrative Procedure of Public Administrations. Although not mandatory, the same request was reiterated on August 9, 2023, and was then accepted and submitted electronically by the respondent on August 16, 2023.

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According to the Preliminary Investigation Report issued by the acting inspector on October 3, 2023, attached to this file, within the section "RESULT OF INVESTIGATION ACTIONS," the following is noted:

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On August 30, 2023, ELECTRAWORKS responded to the information request providing, among other things, the following information regarding the exercise of the right of access subject to this file:

1. Indication that the account was created through its online portal BWIN on April 5, 2018, but there are no accounts in the name of the claimant on its PARTYPOKER or PARTYCASINO platforms.
2. A copy of the data provided to register the claimant's account on April 5, 2018, where it is observed that the name, surname, and ID number match those of the claimant. Other account data is also included, such as the account creation date "April 5, 2018," the first deposit on "April 22, 2018," and the last account activity on "April 27, 2018."
3. Regarding the payment methods registered in the account opened in the name of the claimant, the following is indicated: "The movements in the account were as follows: on April 22, 2018, a deposit was made using the PayPal method for an amount of €200. According to our internal procedure, to register a payment method, it is necessary to deposit money. This is done to verify that the account is active and real and to avoid paying winnings without having made that initial verification. There is no legal requirement that establishes a thorough verification process for the payment method; in fact, there is none. ElectraWorks, as far as possible, tries to avoid payment when the payment method does not match the account information, that is, a payment method that is not in the name of the person who registered the account. Any discrepancy in this particular case would have triggered some type of alarm, but as can be seen in the screenshot from our system, attached as Annex 3, the PayPal account is even registered in the name of A.A.A., so no fraudulent act could be suspected at that time. The last transaction in the account was made on April 27, 2018, which was the day when the entire deposit of €275.65 was withdrawn. The payment was made to the same registered account. If the payment had been made to a different payment method, suspicions of fraud would have been considered, but since this was not the case, the payment was made normally."
4. A screenshot of the data they retained about the payment method is provided, showing that it is a "PAYPAL" payment method associated with the name and surname of the claimant, and that it was created on April 22, 2018.

As a result of all these actions and in light of the background information in this file, the following CONCLUSIONS from the aforementioned Preliminary Investigation Report should be highlighted:

- According to the records provided by ELECTRAWORKS, on April 5,

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On June 19, 2018, an account was opened in the name of the claimant with the gaming operator ELECTRAWORKS. According to the records of ELECTRAWORKS, on April 22, 2018, a deposit was made into the account from a Paypal account that was in the name of the claimant.

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ELECTRAWORKS states that the last transaction in the account was made on April 27, 2018, which was the day when the entire deposit of 275.65 euros was withdrawn, which was deposited into the same Paypal account from which the initial deposit of April 22, 2018, was made. This amount of 275.65 euros is similar to the amount of 275.00 euros of capital gains on BWIN.es (a gaming site operated by ELECTRAWORKS) for the fiscal year 2018, which the claimant states is being claimed by the Spanish Tax Agency (hereinafter, the Tax Agency).

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In Conclusions 6 to 8 of the Preliminary Proceedings Report of the file, the circumstances regarding the submission of the access request, the requirements for rectification from the responding party, and the response dated October 21, 2022, are noted. These conclusions are not transcribed literally for procedural economy, although it is noted that the referenced dates and content coincide with those that have been provided by ELECTRAWORKS to date.

SEVENTH: With indications of a violation of Article 15 of the GDPR, the Director of the Spanish Data Protection Agency issues the Initiation Agreement of the present warning procedure No. 54/2023

dated October 20, 2023, which is notified electronically to the respondent on October 23, 2023.

EIGHTH: On October 25, 2023, a document is submitted by the respondent, in which they waive the submission of allegations and the presentation of evidence, stating that: "This Agency is informed that all available information in our systems related to the operations, transactions, account registration, and listings of the IP addresses from which the operations related to the account were carried out has been sent to the claimant. Annex 1 is presented - Receipt of the Burofax sent to A.A.A. dated October 24, 2023, and a response letter in which the requested documentation is sent."

In proof of this, they attach as Annex I a copy of the burofax sent to the claimant dated October 24, 2023, which indicates a link where the claimant can access all the requested information. A link that this Agency cannot access, and therefore cannot verify whether the respondent has complied with such right of access, for the purposes provided in Article 58.2 of the GDPR.

NINTH: In order to verify this point, evidence is agreed upon by agreement dated November 6, 2023, notified to the respondent on the same day, in which it is agreed to require the claimant to confirm that they have been able to access all the requested information through the aforementioned link made available to them by the responding entity on October 24, 2023.

On the same date and in execution of said agreement, a request is sent asking for such information from the claimant, which is ultimately notified to them on January 16, 2024.

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TENTH: On January 17, 2024, the claimant submitted a written response to the request made on November 6, 2023, in which she acknowledges having received the burofax provided by the respondent containing the access link to the requested information, indicating the following: "The information provided in the burofax corresponds to what was requested with one exception; there is no response whatsoever to my request for the closure and deletion of the account opened by impersonating my identity, nor am I informed whether this has taken place or, if applicable, of the adoption of other measures regarding this matter."

Regarding the request for closure and deletion of the account, it should be noted that the respondent has already responded to it, as indicated in the fifth factual background of the initiation agreement, which was notified to the claimant. The respondent stated in the written allegations submitted to this Agency on January 30, 2023, that: "The account has been closed and the name of your client has been added to our list of fraudulent accounts to prevent third parties from opening more accounts in the future (...)."

PROVEN FACTS

FIRST: It is evidenced that on April 5, 2018, an account was created on the online gaming portal BWIN, managed by the gaming operator ELECTRAWORKS, in the name of A.A.A. by a third party, whose name, surname, and ID number do not match those of the claimant. In this account, a first deposit is recorded on April 22, 2018, from a PayPal account that was in the name of the claimant, and various gaming operations are carried out, resulting in capital gains of 275.65 euros, which are withdrawn by the person listed as the account holder on April 27, 2018.

SECOND: It is evidenced that when requested by the Tax Agency to declare a capital gain of 275 euros from these alleged operations, after discovering that she had an open online gaming account with various operators, one of which is the respondent ELECTRAWORKS, S.L., A.A.A. submitted a request to the same on July 19, 2022, for the blocking and deletion of all accounts opened in her name, as well as a request for access and a copy of all data regarding the historical operations that may have been carried out using said accounts, as well as the IP addresses from which these accounts were generated. This request was made by the legal representative of the claimant via burofax on July 19, 2022, and was also sent by email to ELECTRAWORKS, which maintained various email communications with the aforementioned representative, requesting his identification data. It is evidenced that the complete documentation requested was not received until September 23, 2022.

THIRD: It is evidenced that on October 21, 2022, ELECTRAWORKS sent a response to the legal

representative of the claimant by email, without any evidence of its receipt or delivery to him. In this response, the request for account closure is addressed, although stating that it is not possible to delete the data due to the obligation to retain them for 10 years by legal mandate, and the right of access requested by the claimant is denied based on the following: "The claimant's lawyer was informed that with the exception of the...

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registration data (such as name and date of birth), Bwin understands that the remaining data does not belong to A.A.A., and therefore, we do not consider that it should be subject to the claimant's right of access, but rather through a police request. This does not mean, in any case, that Bwin refuses to send the documentation, as we have emphasized in our previous writing (and even recommended to the claimant's lawyer) that we request the requirement to be sent to the State Security Forces in order to respond to the request, send all the documentation, and avoid a case of identity theft in the future. In fact, we are waiting for the police to contact us to send all the documentation and cooperate in this procedure."

FOURTH: It is recorded in the file that ELECTRAWORKS sent a burofax to the claimant on October 24, 2023, with acknowledgment of receipt on the same date, in which it is indicated that: "we proceed to make available to you all the information existing in our systems related to the account registered in your name through the Bwin.es website. The information included consists of the following categories; • Information on data registered in the account • Payment Methods • Transactions • Deposits • Withdrawals • Bonuses • IP Addresses • Copy of ID." It is also stated that the detailed documents are attached as annexes and that a digital Excel spreadsheet is provided for easier telematic use, which can be accessed via a link.

FIFTH: On January 17, 2024, the claimant informs this Agency that she has been able to access the requested information through the document received on October 24, 2023, accessing the indicated link.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.3 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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II

Right of access to personal data

The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to data portability of individuals regarding personal data protection are regulated in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the protection of natural persons in relation to the processing of personal data and the free movement of such data (hereinafter, GDPR), as well as in Articles 13 to 18 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD).

Regarding the right of individuals to obtain the personal data "concerning them" from the data controller, Articles 12 and 15 of the GDPR, as well as Articles 12 and 13 of the LOPDGDD, are

particularly applicable, all of which must be interpreted within the framework established in Recitals 59 to 64 of the GDPR.

Thus, the main content of the right and its scope or content is established in Article 15 of the GDPR, which states the following:

“1. The data subject shall have the right to obtain from the controller confirmation as to whether or not personal data concerning them is being processed and, where that is the case, access to the personal data and the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;
- d) where possible, the envisaged period for which the personal data will be stored or, if not possible, the criteria used to determine that period;
- e) the existence of the right to request from the controller rectification or erasure of personal data or restriction of processing of personal data concerning the data subject, or to object to such processing;
- f) the right to lodge a complaint with a supervisory authority;

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g) when personal data has not been obtained from the data subject, any information available about its source;

h) the existence of automated decisions, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, significant information about the logic applied, as well as the importance and the expected consequences of such processing for the data subject.

2. When personal data is transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards under Article 46 relating to the transfer.

3. The data controller shall provide a copy of the personal data being processed. The controller may charge a reasonable fee based on administrative costs for any further copies requested by the data subject. When the data subject makes the request by electronic means, unless the data subject requests otherwise, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy mentioned in paragraph 3 shall not adversely affect the rights and freedoms of others.”

For its part, Article 13 of the LOPDGDD establishes certain guidelines for considering this right fulfilled by the data controller in specific cases, specifying the following:

“1. The right of access of the affected party shall be exercised in accordance with the provisions of Article 15 of Regulation (EU) 2016/679. When the controller processes a large amount of data relating to the affected party and the latter exercises their right of access without specifying whether it refers to all or part of the data, the controller may request that the affected party specify the data or processing activities to which the request refers before providing the information.

2. The right of access shall be deemed granted if the data controller provides the affected party with a remote, direct, and secure access system to the personal data that permanently guarantees access to its entirety. For these purposes, the communication by the controller to the affected party of how they can access this system shall be sufficient to consider the request for the exercise of the right fulfilled. However, the data subject may request from the controller the information referred to in the aspects provided for in Article 15.1 of Regulation (EU) 2016/679 that is not included in the remote access system.

3. For the purposes established in Article 12.5 of Regulation (EU) 2016/679, the exercise of the right of access on more than one occasion within a period of six months may be considered repetitive, unless there is a legitimate reason for it.

4. When the affected party chooses a means other than the one offered that involves a

disproportionate cost, the request will be considered excessive, and the affected party will assume the excess costs that their choice entails. In this case, the data controller will only be required to satisfy the right of access without undue delay."

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD, with particular relevance for the present procedure to what is established in Article 12 of the GDPR regarding the transparency of information, communication, and modalities for exercising the rights of the data subject, which states the following (the underlining is ours):

"1. The data controller shall take appropriate measures to provide the data subject with all information indicated in Articles 13 and 14, as well as any communication in accordance with Articles 15 to 22 and 34 relating to processing, in a concise, transparent, intelligible, and easily accessible form, using clear and plain language, particularly any information specifically addressed to a child. The information shall be provided in writing or by other means, including, where appropriate, by electronic means. When requested by the data subject, the information may be provided verbally, provided that the identity of the data subject is demonstrated by other means.

2. The data controller shall facilitate the exercise of the rights of the data subject under Articles 15 to 22. In the cases referred to in Article 11, paragraph 2, the controller shall not refuse to act at the request of the data subject in order to exercise their rights under Articles 15 to 22, unless it can demonstrate that it is unable to identify the data subject.

3. The data controller shall provide the data subject with information regarding its actions based on a request under Articles 15 to 22, without undue delay and, in any case, within one month of receiving the request. This period may be extended by a further two months if necessary, taking into account the complexity and number of requests. The controller shall inform the data subject of any such extensions within one month of receiving the request, indicating the reasons for the delay. When the data subject submits the request by electronic means, the information shall be provided by electronic means where possible, unless the data subject requests that it be provided in another way.

4. If the data controller does not act on the request of the data subject, it shall inform them without undue delay, and at the latest within one month of receiving the request, of the reasons for its inaction and the possibility of lodging a complaint with a supervisory authority and pursuing legal action.

5. The information provided under Articles 13 and 14, as well as any communication and any action taken under Articles 15 to 22 and 34, shall be provided free of charge. When requests are manifestly unfounded or excessive, particularly due to their repetitive nature, the data controller may:

- a) charge a reasonable fee based on the administrative costs incurred to provide the information or communication or to take the requested action, or
- b) refuse to act on the request.

The data controller shall bear the burden of demonstrating the manifestly unfounded or excessive nature of the request.

6. Without prejudice to the provisions of Article 11, when the data controller has reasonable doubts concerning the identity of the natural person making the request referred to in Articles 15 to 21, it may request the provision of additional information necessary to confirm the identity of the data subject.

7. The information that must be provided to data subjects under Articles 13 and 14 may be transmitted in combination with standardized icons that allow for a readily visible, intelligible, and clearly legible overview of the intended processing. Icons presented in electronic format shall be machine-readable.

8. The Commission shall be empowered to adopt delegated acts in accordance with Article 92 to specify the information to be presented through icons and the procedures for providing standardized icons."

Finally, Article 12 of the LOPDGDD establishes the general provisions regarding the exercise of rights, in the following terms (the underlining is ours):

"1. The rights recognized in Articles 15 to 22 of Regulation (EU) 2016/679 may be exercised directly or

through a legal or voluntary representative.

2. The data controller shall be obliged to inform the affected party about the means available to exercise the rights that correspond to them. The means must be easily accessible to the affected party. The exercise of the right may not be denied solely on the grounds that the affected party opts for another means.

3. The processor may process, on behalf of the controller, the requests for the exercise of rights made by the affected parties if this is established in the contract or legal act that binds them.

4. The proof of compliance with the duty to respond to the request for the exercise of rights...

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The rights formulated by the affected party shall fall upon the responsible party.

5. When the applicable laws for certain treatments establish a special regime that affects the exercise of the rights provided in Chapter III of Regulation (EU) 2016/679, the provisions of those laws shall apply.

6. In any case, holders of parental authority may exercise on behalf and representation of minors under fourteen years of age the rights of access, rectification, cancellation, opposition, or any other rights that may correspond to them in the context of this organic law.

7. The actions carried out by the data controller to address requests for the exercise of these rights shall be free of charge, without prejudice to the provisions of Articles 12.5 and 15.3 of Regulation (EU) 2016/679 and Sections 3 and 4 of Article 13 of this organic law.

In the present case, the defendant ELECTRAWORKS acknowledges having managed the allegedly fraudulent account opened in the name of the claimant by a third party on the online gaming website BWIN, which is corroborated by the report from the “Phishing Alert” application.

Therefore, as the data controller of the personal data contained therein, it was incumbent upon them to respond to the request for access and deletion made by the claimant within 1 month from the submission of the request in proper form by their legal representative, potentially incurring an administrative infringement of the GDPR, both in the case of failing to respond to the claim in accordance with the aforementioned formal requirements, and in the case of having rejected it for a legally unprovided reason.

III

Concurrent Infringement

Considering that the defendant had attended to the request for account closure, in light of the statement made in their allegations of January 30, 2023, regarding that they had proceeded to: “close the claimant's account and include the name of their client in our list of fraudulent accounts to prevent third parties from opening more accounts in the future (...)”, without being able to delete the data, given the duty to retain the same established by legal mandate, the object of the present procedure focuses on determining whether ELECTRAWORKS attended to the request for access to data and copy made by the claimant on September 23, 2022 (the date on which it is understood that it was submitted in legal form, as the required identification documentation had not been sent until then by the defendant to process the request).

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Specifically, the claimant requested access to: “all data regarding the historical operations that may have been carried out using said accounts, as well as the I.P. addresses from which these accounts were generated,” which implied accessing the data of the third party who fraudulently carried out these operations in their name.

In this regard, the respondent states that it sent a response on October 21, 2022, to the legal representative of the claimant - who made the request on their behalf - by email, maintaining that this would have fulfilled the 1-month deadline established by the aforementioned regulations. However, the claimant denies having received any response, and the respondent has not provided sufficient evidence to prove that the legal representative of the claimant received the response allegedly sent on October 21, 2022. In the written allegations submitted on January 30, 2023, to this Agency, the response allegedly sent to the claimant is attached, but no postal receipt, email acknowledgment of receipt, or burofax, or any other supporting document justifying delivery to the legal representative who made the request is included. Only a screenshot showing that the response was sent through its internal system called "Zendesk" is provided, which cannot be considered sufficient supporting documentation for delivery to the recipient. Since it is the respondent's burden to have responded to the access request presented by a means that evidences receipt by the interested party, it is understood that it has not been proven that the respondent fulfilled its obligation to respond within the 1-month period from the receipt of the request in legal form.

Now, regardless of whether the claimant came to know the response or not, what is truly significant is the fact that the respondent's response was negative, rejecting the requested right of access. And the truth is that, given the concurrent circumstances, the claimant had the right to know that data, so even if the respondent had responded on time to such a request, it would still have incurred a violation of Article 15 of the GDPR since it denied the right of access to the requested data without a justified reason for doing so.

Thus, the reason cited for denying the access request both in the response of October 21, 2022, and in the written allegations of August 30, 2023, was the following:

"(...) The claimant's lawyer was informed that with the exception of the registration data (such as name and date of birth), Bwin understands that the rest of the data does not belong to A.A.A., and therefore, we do not consider that they should be subject to the right of access by the claimant, but rather through a police request. This does not mean in any case that Bwin refuses to send the documentation, as we have emphasized in our previous writing (and even recommended to the claimant's lawyer) that we request that the request be sent to the State Security Forces so that in this way, we can respond to the request, send all the documentation, and avoid a case of identity theft in the future. In fact, we are waiting for the police to contact us to send all the documentation and cooperate in this procedure."

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In this regard, the provisions set forth by the European Data Protection Board (hereinafter, EDPB) in Guideline number 1/2022, adopted on March 28, 2023, which approves the Application Guide for Article 15 of the GDPR, regarding the Right of Access of the Data Subject, should be applied. Point 4.2 specifies the scope of personal data that can be requested by data subjects when it concerns another person, warning against the danger of making a "too restrictive" interpretation to automatically deny access.

This Guideline establishes the following (the underlining is ours):

"4.2 The personal data referred to by the right of access

In accordance with Article 15, paragraph 1 of the GDPR, 'the data subject shall have the right to obtain from the controller confirmation as to whether or not personal data concerning him or her is being processed and, where that is the case, access to the personal data and the following information' (the underlining is ours).

Several elements can be derived from paragraph 1 of Article 15 of the GDPR. The paragraph expressly refers to 'the personal data concerning him or her' (4.2.1), which 'is being processed' (4.2.2) by the data controller:

1.1.1. 'personal data concerning him or her'

The right of access can only be exercised with respect to personal data related to the data subject requesting access or, where applicable, by an authorized person or representative (see section 3.4). There are also situations where the data does not have a link to the person exercising the right of access, but rather to another person. However, the data subject only has the right to personal data relating to themselves, excluding data that exclusively concerns another person.

However, the classification of data as personal data relating to the data subject does not depend on whether such personal data also relates to another person. Therefore, it is possible for personal data to relate to more than one person at the same time. This does not automatically mean that access is granted to personal data also related to another person, as the data controller must comply with Article 15, paragraph 4, of the GDPR.

The words 'personal data concerning him or her' should not be interpreted in a 'too restrictive' manner by data controllers, as has already been stated by the Article 29 Working Party regarding the right to data portability."

Consequently, according to the EDPB, the highest European authority in this matter, the right of access under Article 15 of the GDPR goes beyond requesting one's own personal data—limited to the data subject—and extends to those that concern them. A data subject such as the complainant can exercise the right of access in relation to all personal data held by the data controller concerning their identity, including those that have been collected in an instance of impersonation.

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identity. Impersonation that has been acknowledged by the respondent and substantiated by the claimant by providing the requirements for the declaration of capital gains made to the same by the Tax Agency, as well as the filing of the corresponding complaint with the National Police.

Furthermore, Directive 1/2022 expressly mentions that the right to know the operations carried out in cases of accounts opened due to "identity theft" can be admitted, even referring to an identical example to the present case, in the following terms (the underlining is ours):

"On the other hand, there are situations where the link between the data and several individuals may seem blurred for the controller, as in the case of identity theft. In the event of identity theft, one person acts fraudulently on behalf of another person. In this context, it is important to remember that the victim must receive information about all the personal data that the data controller holds in relation to their identity, including those that have been collected based on the actions of the fraudster. In other words, even after the data controller becomes aware of the identity theft, the personal data associated or related to the identity of the victim constitutes personal data of the data subject.

Example 17: An individual fraudulently uses the identity of another person in order to play online poker. The perpetrator pays the online casino using the credit card that was stolen from the victim. When the victim becomes aware of the identity theft, the victim requests the online casino provider to provide access to their personal data and, more specifically, to the online games played and information about the credit card used by the perpetrator. There is a link between the data collected and the victim, as the identity of the latter has been used. After the detection of the fraud, the aforementioned personal data still has a link due to its content (the victim's credit card is clearly about the victim), purpose, and effect (the information about the online games played by the perpetrator can, for example, be used to issue invoices to the victim). Therefore, the online casino will grant the victim access to the aforementioned personal data.

In conclusion, in the present case, the denial of access to the requested information was inappropriate, since the claimant had and has the right to request "all data regarding the historical operations that may have been carried out using said accounts and the IP address(es) from which they were carried out," given that we are dealing with identity theft in an online game and there is a clear link between the requested data (operations carried out and IP addresses) and the victim's right of access regarding

which capital gains have not been declared to the Tax Agency, or what other
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Illegal operations may have been carried out in your name, with the consequent damages arising therefrom.

The main argument put forth by the respondent is not valid, since the right to access personal data affecting the claimant in cases of identity theft, such as the present one, does not require prior judicial authorization or prior police request, and Article 25 of Law 10/2010, of April 28, on the Prevention of Money Laundering, which the respondent claims in its response to the information request from this Agency dated August 30, is not applicable, as it obliges the retention and not the deletion of documents formalized in compliance with said law for a period of 10 years, but does not prevent the exercise of the right to access personal data by those who are interested for the purposes provided in Article 15 of the GDPR.

By denying this access, ELECTRAWORKS failed to comply with its obligation to provide the data to the claimant, committing a violation of Article 15 of the GDPR, a violation that remains since it had already been consummated when the present procedure was initiated, without prejudice to the fact that, having rectified the breach by finally delivering the data to the claimant on October 24, 2023, it is not appropriate to make a pronouncement regarding the duty to adopt measures to comply with the regulations, for the purposes of Article 58.2 of the GDPR.

IV

Classification and Qualification of the Violation

In accordance with the evidence available at this moment of resolution of the warning procedure, it is considered that the respondent has violated the right of access provided in Article 15 of the GDPR by denying the information requested by the claimant on July 20, 2022, regarding the account fraudulently opened in the name of the claimant on the BWIN website, for which the respondent is responsible.

The violation of Article 15 of the GDPR is classified in Article 83.5.b) of the GDPR, which states:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

b) the rights of data subjects under Articles 12 to 22;”

For the purposes of the statute of limitations for violations, the violation attributed prescribes after 3 years, in accordance with Article 72.1.k) of the LOPDGDD, which provides that:

“1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following violations shall be considered very serious and shall prescribe after three years, which involve a substantial breach of the articles mentioned therein and, in particular, the following: (...)

k) The obstruction or hindrance or repeated failure to attend to the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679....”

V

Proposal for Warning

Without prejudice to the provisions of Article 83 of the GDPR, this Agency, acting as a supervisory authority, has the power to issue a warning, in accordance with the provisions of the aforementioned Regulation, which states in paragraph 2.b) of Article 58 “Powers” the following:

“Each supervisory authority shall have all of the following corrective powers indicated below: (...)

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation; (...)”

Furthermore, Article 64 of the LOPDGDD, which regulates the “Initiation of the procedure and duration,” states in its third paragraph that:

“3. When appropriate, considering the nature of the facts and duly taking into account the criteria

established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, the Spanish Agency for Data Protection, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specific manner and within the specified timeframe.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it shall expire, and consequently, the file of actions shall occur.

The provisions of the second and third paragraphs of paragraph 2 of this article shall apply in this case.”

In view of the circumstances present in this file and applying the indicated criteria, it is deemed appropriate to issue a warning for the violation of the infringed article.

Therefore, in accordance with the applicable legislation and evaluated the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: TO ISSUE A WARNING to ELECTRAWORKS - CEUTA, S.A., with NIF A67870402, for a violation of Article 15 of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO NOTIFY this resolution to ELECTRAWORKS - CEUTA, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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